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Submitter Information

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General Comment

From:

Tyler Oakleaf

Software Engineer & Musician

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a software engineer with a background in professional music from Berklee College of Music. My career has been built at the intersection of technology and creativity, requiring years of dedicated learning and skill development. I have been fortunate to turn my expertise into a sustainable livelihood—until recently.

The AI systems developed by Big Tech companies like OpenAI (Microsoft) and Google pose an existential threat to thousands of American professionals like me. These companies are now pushing for special carve-outs in copyright law that would legalize their exploitation of creative and intellectual property.

AI models do not generate content in a vacuum—they are trained on the work of human creators. My work, along with that of countless other American programmers, designers, musicians, and artists, has been ingested by these AI systems without our consent or compensation. These models absorb our intellectual property, reassemble it, and then offer it as a product—directly competing with us and undermining the value of our labor.

Now, Big Tech is pressuring this administration to rewrite copyright law in their favor, arguing that when a machine ingests and reproduces copyrighted material, it should be considered “fair use.” They want to establish legal precedent that effectively allows them to take anything available on the internet—regardless of ownership—without permission or consequence.

This is not a pathway to innovation; it is a direct attack on the foundational principles of American creativity and entrepreneurship. Copyright law exists to protect innovation by ensuring that creators retain the rights to their work and the ability to benefit from it.

If the American people no longer own what they create—if every line of code, every musical composition, every digital design can be freely taken and commercialized by corporations—what incentive remains to create at all? How can independent professionals sustain their businesses when the fruits of their labor are immediately repackaged and sold by Google, Microsoft, and others?

If this administration wants to protect American innovation, it must start by protecting American creators. That means refusing to grant new copyright exemptions that enable Big Tech to exploit our work without consent, compensation, or transparency.

Instead, the AI Action Plan should focus on fostering a fair and competitive marketplace by implementing the following safeguards:

- Consent: Creators and professionals must have the right to decide when and where their work is used for AI training. The government should ensure that AI developers obtain effective consent before using copyrighted material.

- **Licensing Marketplace:** The plan should encourage the development of a robust licensing framework, ensuring that creators are compensated when their work contributes to AI-generated products. Our work holds immense economic value, and that value should benefit the original creators, not just the tech giants profiting from AI.
- **Transparency:** Big Tech companies must be required to disclose the contents of their training datasets and clearly label AI-generated content. This will provide accountability and help prevent the widespread misinformation and market disruption that unchecked AI adoption can cause.

I am not opposed to AI. As a software engineer, I recognize and appreciate the incredible potential of these technologies. However, progress should not come at the expense of the countless individuals who drive American innovation forward. AI should complement human creativity—not replace it by stripping creators of their rights and livelihoods.

Thank you for the opportunity to provide input on this critical issue.